



12/05/2023
0334-02
22-MED-03-0304
43686

AGREEMENT

BETWEEN
the
BATAVIA LOCAL BOARD OF EDUCATION

And the
OHIO ASSOCIATION OF PUBLIC SCHOOL EMPLOYEES
Chapter #738

July 1, 2022 – June 30, 2025

Index

<u>Article</u>	<u>Title</u>	<u>Page</u>
ARTICLE 1	TERM	1
ARTICLE 2	RECOGNITION	1
ARTICLE 3	DEFINITIONS	3
ARTICLE 4	PRINCIPLES	3
ARTICLE 5	NEGOTIATIONS	3
ARTICLE 6	NO STRIKE	5
ARTICLE 7	DISCIPLINARY PROCEDURE	6
ARTICLE 8	GRIEVANCE PROCEDURE	7
ARTICLE 9	EMPLOYEES' RIGHTS	9
ARTICLE 10	ASSOCIATION RIGHTS	9
ARTICLE 11	BOARD (MANAGEMENT) RIGHTS	10
ARTICLE 12	PAY	11
ARTICLE 13	SENIORITY	11
ARTICLE 14	LAYOFF AND RECALL	12
ARTICLE 15	BID PROCEDURE	13
ARTICLE 16	OVERTIME	14
ARTICLE 17	PERSONAL LEAVE	15
ARTICLE 18	ATTENDANCE INCENTIVE	16
ARTICLE 19	PROFESSIONAL MEETINGS	16
ARTICLE 20	SICK LEAVE	16
ARTICLE 21	SEVERANCE PAY	17
ARTICLE 22	MILEAGE COMPENSATION	17
ARTICLE 23	BUS ROUTE BIDDING	18
ARTICLE 24	EXTRA TRIPS	19
ARTICLE 25	JOB DESCRIPTIONS	21
ARTICLE 26	VACATION	21
ARTICLE 27	HOLIDAYS	22
ARTICLE 28	LEAVE OF ABSENCE WITHOUT PAY	23
ARTICLE 29	FAMILY MEDICAL LEAVE ACT	23
ARTICLE 30	ASSAULT LEAVE	24
ARTICLE 31	MISCELLANEOUS	24
ARTICLE 32	PAY PERIODS	25
ARTICLE 33	WAGES AND FRINGE BENEFITS	25
ARTICLE 34	EMPLOYMENT CONTRACTS	27
ARTICLE 35	HIRING RETIRED EMPLOYEES	27
ARTICLE 36	ATTENDANCE OF EMPLOYEES' CHILDREN AT BATAVIA LOCAL SCHOOLS	28
SIGNATURE PAGE		30
ATTACHMENT	FORM – REQUEST FOR NON-RESIDENT STUDENTS OF CLASSIFIED EMPLOYEES TO ATTEND BATAVIA SCHOOLS	31
EXHIBIT "A"	SALARY SCHEDULES	32

CONTRACT

This Contract made and entered into this day of June 30, 2022 by and between the Board of Education of the Batavia Local School District, hereinafter referred to as the "BOARD" and the Ohio Association of Public School Employees (OAPSE) and its affiliate, Chapter #738, hereinafter referred to as the "ASSOCIATION".

ARTICLE 1 - TERM

This Contract is effective for the period beginning July 1, 2022, and ending June 30, 2025

ARTICLE 2 - RECOGNITION

Section 1 - The Board hereby recognizes the Association as the sole and exclusive bargaining representative for all employees now employed or to be employed who are eligible to be members of the hereinafter described bargaining unit for the term of this Agreement.

The Association recognizes that the Board is charged with the establishment of policy of public education in the Batavia Local School District and is the employer of all personnel of the Batavia School System under state law. The Association further recognizes that the Board has the sole responsibility for management and control of all public schools whatever name or character in the district.

Section 2 - The bargaining unit includes all full-time and regularly employed short-hour employees in the following positions or classifications which are regularly assigned to work schedules:

- a. Bus Drivers
- b. Cooks
- c. Custodians
- d. Mechanics
- e. Paraprofessionals
- f. Maintenance

Section 3 - For the purpose of this Contract, the following are excluded from the bargaining unit:

- a. Board Treasurer and Superintendent
- b. Secretaries
- c. Assistant Treasurer(s)
- d. Treasurer's Assistant(s)
- e. Any person employed in an administrative, director or supervisor position.

Section 4 – Union Security, Dues/Fees Deductions - All employees of the Bargaining Unit shall become either:

1. A member of the Ohio Association of Public School Employees (OAPSE) Local 738 and execute an authorization for dues deduction on a form provided by OAPSE. Should Fair Share fee be declared constitutional at some later date, the language regarding fair share from the 2016-2019 contract shall be re-implemented.

2. All bargaining Unit Members shall authorize payroll deduction for the payment of dues

3. Such deductions shall be made in twenty four (24) equal installments beginning with the first pay in October. Signed Payroll Deduction Authorizations executed by the members shall be continuous from year-to-year for the duration of the term of recognition of OAPSE Local 738 as the Bargaining Representative, or until such time as the employee withdraws such authorization in writing. An employee may withdraw Membership in accordance with the guidelines indicated in their signed membership application, a copy of which shall be provided to the District Treasurer.

4. Payroll deductions shall occur immediately upon request, or in the case of a new employee(s), following the Initial Employment Period. The Board Treasurer shall notify the OAPSE State Treasurer of the gross salary of the employee based on W-2 information and the amount of dues or service fee to be deducted. The Board Treasurer shall forward to the OAPSE State Treasurer the amount of the State dues/fees, along with a complete description by name and amount, for each employee. A copy of this description shall be forwarded to the Local OAPSE Treasurer. The Board Treasurer shall forward the dues to the State OAPSE Treasurer within five (5) days of the deduction.

5. The Union shall defend and indemnify the Board, the Treasurer, their Officers, Members, Agents, and Assignees in both their individual and Official capacities, and hold them harmless against any and all claims, demands, suits, or other forms of liability, including legal fees and expenses that may arise out of or by reason of the action taken by the Board, its Officers, Member Employees and/or Agents for the purpose of complying with any of the provisions of this Article, or in reliance on any list, notices, or assignments furnished under any of such provisions. The Union shall retain control of any appointments of Legal Counsel for defense and indemnification purposes.

6. PEOPLE Deductions: Upon enrollment of at least five (5) employees, the Board agrees to deduct from the wages of any employee who is a member of the Union a People deduction as provided for in the written authorization. Such authorization must be executed by the employee and may be revoked by the employee at any time by giving written notice to both the employer and the Union. The Board agrees to remit any deductions made pursuant to this provision promptly to the Union, together with an itemized statement showing names of each employee from whose pay such deductions have been made and the amount deducted during the period covered by the

remittance.

Section 5 - In the event a new position is created, the Board and the Association will meet to determine the application of the position in accordance with this Article. In the event the new position is included in the bargaining unit, the Board and the Association will negotiate an appropriate wage schedule.

ARTICLE 3 – DEFINITIONS

Days - Refers to calendar days unless otherwise indicated.

Good Faith - “Good Faith” means coming to the negotiating table with the intention of giving consideration to the proposals and reasons therefore of the other party, not of dogmatically pursuing preconceived stands. Good faith requires the representative(s) of the Association and the representative(s) of the Board to be willing to react to each other’s proposals and the reasons for such proposals. If a proposal is unacceptable to one of the parties, there is an obligation to give its reasons for its opposition. Good faith requires both parties to recognize negotiations as a shared process, but the obligation of the Board’s representative (s) to meet for the purpose of negotiations does not compel either party to agree to a proposal or require the making of a concession.

Party - Shall be construed to mean the Association’s and the Board’s appointed members of the negotiating team.

ARTICLE 4 - PRINCIPLES

Section 1 - All employees covered by this Agreement have the right to join in, participate in, and assist the Association and, likewise, the right to refrain from becoming a member of or assisting the Association.

Section 2 - The Board and the Association shall comply with all the laws and regulations of the state of Ohio.

ARTICLE 5 – NEGOTIATIONS

Section I - Negotiation Teams - The designated representative(s) of the Board will meet with representatives designated by the Association for the purpose of discussing and reaching agreements. All negotiations shall be conducted exclusively between said teams. The Board’s negotiating team and the Association’s negotiating team will be limited to six (6) members each. Neither party shall have control over the selection of the other party’s team members. While no final contract shall be executed without ratification by the Association and formal acceptance by

the Board, the negotiating teams will have the authority to make proposals, consider proposals, and determine items acceptable to both parties involved in negotiations.

Section 2 - Consultants - Up to two (2) consultants may be used by each of the parties in any of the negotiation meetings in an advisory capacity. Consultants will not be permitted to enter into discussion unless both parties agree to permit them to address the teams.

Section 3 - Expense - The expense of such consultants shall be borne by the party requesting or hiring them.

Section 4 - Exchange of Information - Prior to and during the period of negotiations, the Board and the Association agree to provide each other, upon request, all regularly and routinely prepared public information concerning the issue(s) under consideration.

Section 5 - Submission of Issues - All issues for negotiation shall be submitted by the Association in writing at the first meeting and the Board shall submit in writing to the Association all of its issues for negotiation at the same meeting. No additional issues shall be submitted by either party following the first meeting unless agreed to by both parties.

Section 6- Negotiations Procedures- The parties shall meet at places and times agreed upon at the prior meeting. Length of meetings as well as times and places of the following meetings shall be agreed upon at the beginning of each session. All meetings shall be held in executive session. No loss of pay shall occur if negotiations meetings are mutually scheduled during working hours.

Section 7 - Caucus - Upon request of either party, the negotiation meeting shall be recessed to permit the requesting party a period of time within which to caucus in private. This caucus shall be limited to forty-five minutes, unless the parties agree to provide additional time, which consent shall not unreasonably be withheld.

Section 8 - Progress Reports - During negotiations, interim reports made to the Association and the Board of Education by either party will be permitted. Each party will be responsible for requesting that the information from such reports shall be confidential information within the organization concerned.

Section 9 - News Releases - News releases during negotiations and prior to the declaration of impasse by either side shall be made only by mutual agreement. Once impasse has been declared pursuant to the contract, either party may issue news releases without consulting with and/or obtaining the consent of the other party.

Section 10 - Protocol - No action to coerce, censor or penalize any participant in negotiations shall be made or implied by any other person or members of either party. Both sides agree to conduct themselves in a professional manner.

Section 11 - Item Agreement - As negotiated items are agreed upon, they shall be reduced to writing and initialed by the chief negotiator of each party. Such initialing shall be construed as tentative agreement by both parties on that item, or issue, subject to finalization by ratification by the membership of the Association and agreement by the Board.

Section 12 - Contract - When a contract is reached through negotiations, the outcome shall be reduced to writing. Both parties shall review the contract together to determine the accuracy of the transcript. If the contract is then in proper form, it shall be submitted to the membership of the Association, and the Board for ratification and adoption. The bargaining teams pledge that they will favorably recommend to their respective parties the acceptance of the tentative agreement reached through negotiations. If ratified by both parties, the new contract shall be executed by the appropriate representatives of the parties and shall become binding upon both of them.

Section 13 - Impasse Procedure - If after having negotiated for at least sixty (60) calendar days, the two bargaining teams have not been able to reach an agreement on all items, then either bargaining team may declare impasse and request in writing to the other that the issues be submitted to mediation.

The parties shall jointly notify the Federal Mediation and Conciliation Service of the dispute and request the selection of a mediator. The parties shall mediate for at least thirty (30) calendar days from the first meeting with the mediator and if no agreement is reached in that time frame, then the impasse procedures of this contract shall be deemed to have been completed, unless the parties have mutually agreed to an extension of the mediation process. This impasse procedure supersedes and replaces the impasse procedure contained in Chapter 4117 of the Ohio Revised Code. Should the parties be unable to reach agreement through mediation, and the parties having not agreed to an extension of the mediation process the Association maintains its right to strike provided the provisions of the contract subject to negotiation have expired and the Association has given the Board notice to strike required by Chapter 4117 of the Ohio Revised Code. Should the Association provide the notice to strike ultimate impasse shall be deemed to exist between the parties.

ARTICLE 6 - NO STRIKE/NO LOCKOUT

The Association agrees that it will not encourage, sanction or approve any strike, stoppage, slow down or other interruptions of work during the life of this Agreement. On the contrary, the Association will actively discourage and denounce any strike, stoppage, slow down or other interruption of work in violation of this Agreement. Neither shall the Board lock-out employees covered by this Agreement in any manner which would result in a loss of pay.

ARTICLE 7 - DISCIPLINARY PROCEDURE

Section 1 – An employee covered by this Agreement may be disciplined up to and including suspension and/or discharge, for just cause. Except with respect to the more serious offenses listed in Section 2 below, the principles of progressive discipline will be followed in situations warranting the application of discipline while performing their paid duties. Specifically, an employee shall first receive a verbal reprimand, documented in writing, then a written reprimand, then an unpaid suspension and then termination.

Section 2 - The progressive discipline steps described above will not apply to the more serious offenses and conduct listed below:

- A. Insubordination and/or refusal to perform assigned work;
- B. Consuming, using or being under the influence of intoxicants, including alcohol and controlled substances;
- C. The use of insulting or abusive language to the public;
- D. Deliberately causing injury to a fellow employee or deliberately causing the destruction of a fellow employee's property or Board property;
- E. Immoral conduct with a student;
- F. Carrying concealed weapons or any other violations of criminal law;
- G. Falsification of records with the intent to defraud and/or stealing school district property of other employees;
- H. Misuse of sick leave, which includes falsification of reasons for sick leave usage or falsification of the information on the sick leave form;
- I. Misuse of personal leave.
- J. Other actions by the employee which constitute just cause for the suspension or dismissal of the employee.

Committing any of the acts described above may be cause for immediate suspension or dismissal.

Section 3 – Progressive discipline may be utilized by the Board for absenteeism which is unrelated to serious illness of the employee or employee's immediate family members if the employee has been advised that there is a problem with his/her attendance and has been directed to improve that attendance and fails to do so.

Section 4 - The Board may issue and require employees to observe and obey rules, regulations and policies adopted by the board, and employees shall be subject to disciplinary action in accordance with the above procedure for violation(s) of such rules, regulations, and policies. Board policies, rules and regulations will be available on the District website and at the Board administrative offices.

Section 5 – Employees are to receive not less than forty-eight (48) hours' notice of a disciplinary hearing. The notice shall contain the charges and that an employee who so chooses has the right to have a representative present at any meeting or hearing which may lead to or result

in disciplinary action against the employee.

ARTICLE 8 - GRIEVANCE PROCEDURE

Section 1 - Definitions - The following definitions shall apply:

- A. "Grievance" is a formal claim by a classified person(s) who is covered by this Agreement that one or more of the terms of this Agreement have been misinterpreted or misapplied.
- B. "Grievant" is a classified person or persons or the Association covered by this Agreement having an alleged grievance.
- C. "Association" is defined as the OAPSE Chapter #738.
- D. "Board" is the Batavia Local School District Board of Education.
- E. A "Day" in this article shall mean Monday thru Friday excluding holidays. The number of days indicated at each level shall be considered as a maximum and should be adhered to in expediting the procedure.

Section 2 - Purpose

The purpose of the grievance procedure is to secure, at the lowest possible administrative level, proper solutions to grievances. Both parties agree that grievance proceedings shall be kept as informal and confidential as appropriate at all levels of the procedure.

Section 3 - Procedure

- A. The number of days indicated at each level shall be considered as a maximum and every effort should be made to expedite the process. The time limits may be extended by mutual consent of all parties concerned.
- B. The grievant may be accompanied at all steps by an Association member, or field representative with full participation rights.
- C. Grievances shall be resolved as follows:

Section 4 - Grievance Steps

Step One - The grievant(s) shall first discuss his/her or their grievance with the appropriate supervisor with the objective of resolving the grievance informally. The grievant(s) shall state to the supervisor at the start of the conference that this is Step One of the grievance procedure.

Step Two - If the grievant(s) is, or are not, satisfied with the disposition made at Step One, or if no disposition is made within five (5) days after such conference, the grievant may file the grievance in writing with his/her, or their supervisor. The supervisor shall, within five (5) days after receipt of the written grievance, give the aggrieved person or persons his written answer.

The formal grievance must be filed at Step Two in writing within fourteen (14) days of the occurrence of the event, or condition upon which the grievance is based. Failure to file the

grievance within said fourteen (14) day period will constitute a waiver of the grievance.

Step Three - If the grievant(s) is, or are not satisfied, with the disposition of the grievance made at Step Two, or if no disposition is made within five (5) days after such discussion, the aggrieved may, within five (5) days of receipt of the decision, appeal said decision to Step Three of the grievance procedure. Failure to appeal within the time allotted herein will constitute a waiver of the right to appeal the grievance to Step Three or any further in the grievance process.

Upon receipt of a proper appeal, the Superintendent shall, within five (5) days after receipt of the grievance, meet with the grievant(s) and such other person(s) as the Superintendent designates to consider the grievance. Within five (5) days after such meeting, the Superintendent shall give the grievant(s) his or her response to the grievance.

Step Four - In the event the grievance is not resolved to the satisfaction of the grievant at Step Three, or if no disposition is made within five (5) days after such meeting at Step Three, the parties may mutually agree to submit the grievance to mediation through the use of the Federal Mediation and Conciliation Service. The request for mediation must be made within five (5) days of the decision or lack of decision. If mediation of the grievance is attempted and is unsuccessful, or if the Board does not agree to submit the grievance to mediation, then the Association may appeal the grievance to Step Five of the grievance procedure.

Step Five - In the event that the grievance is not satisfactorily resolved at Step Four, the Association may submit the grievance to arbitration by filing a notice of appeal to Step Five in writing with the Treasurer of the Board no later than five (5) days and to the Federal Mediation and Conciliation Services no later than thirty (30) days after the completion of mediation at Step Four or the Board's refusal to submit the matter to mediation. Failure to appeal to Step Five of the grievance procedure within the time period stated herein shall constitute a waiver of the right to appeal the grievance to Step Five of the grievance procedure.

Upon the receipt of a proper appeal to Step Five of the grievance procedure, the Board's representative and the grievant's representative shall jointly request a list of names from the Federal Mediation and Conciliation Service (FMCS). The Board's representative and the grievant's representative shall then select an arbitrator from a list provided by the Federal Mediation and Conciliation Service in accordance with the rules and regulations of the Federal Mediation and Conciliation Service. The arbitrator shall have the authority to hold hearings and to confer with any person deemed advisable in arriving at his/her decision on the grievance. The arbitrator shall report his/her decision to the grievant, the union, and the Board in accordance with the rules and regulations of the Federal Mediation and Conciliation Service. The parties do not have an obligation to submit to arbitration any grievance not filed or appealed within the timelines stated in this Article. It is agreed by the parties that the decision of the arbitrator shall be final and binding. The parties against whom the arbitrator rules shall pay the full amount of the arbitrator's bill and expenses.

Section 5 - Miscellaneous

A. No reprisal of any kind shall be taken by or against any participant in the grievance procedure by reason of such participation.

B. If a grievance is filed which alleges that the Superintendent of the District or the Board of Education has misinterpreted or misapplied the Agreement, the grievance shall commence at Step Three.

C. No grievance award may be in conflict with the statutory or common law governing the Board and the District.

D. If at any step, a reply is not received in writing within the time allocated, the grievant(s) has/have the right to proceed to the next step in the grievance procedure.

E. If a written grievance is filed on an issue which has been resolved by the administration as an informal complaint, the decision of the administration shall not constitute a precedent.

F. An association representative may be present upon request at any step of the grievance procedure.

G. If the grievance is unilaterally withdrawn by the Union after arbitration has been requested, the Union shall be responsible for all cancellation costs due to FMCS and the Arbitrator.

ARTICLE 9 - EMPLOYEES' RIGHTS

The official personnel file of each classified employee shall be maintained at the Superintendent's office. However, copies of the file or portions of the file may be maintained elsewhere, but there shall be one official file located at the District's office.

Employees shall be provided the opportunity to see any derogatory material before it is placed in the employee's file.

An employee will be entitled to a copy of any material in his/her file upon the payment of a reasonable copying charge as set forth in Board policy.

An employee shall be provided the opportunity to review his/her evaluation with his/her supervisor and to sign his/her evaluation before it is put in any file. If the employee refuses to sign, it may be placed in the file without the employee's signature. The rules governing the personnel files as outlined in this article shall be supplemental to and in addition to Section 1347 of the Ohio Revised Code. Access to personnel files shall be in accordance with the Ohio Public Records Law.

ARTICLE 10 - ASSOCIATION RIGHTS

OAPSE Chapter #738 shall have the following rights and privileges:

A. The use of designated areas in school buildings at no charge for the purpose of

Association meetings. Such use shall be confined to times of the day when school is not in session and shall be arranged with the building principal at least three (3) days in advance.

B. Association materials may be sent from one building to another through the school mail.

C. Association materials may be posted on bulletin boards located in the employees' workrooms.

D. The Association may submit items of a non-political nature to the building principals to be announced over the public address systems

E. The Association shall be provided, upon request, the names and addresses of newly employed staff members covered by this Agreement.

F. The following shall be subject to payroll deductions and remitted as deducted:

1. Credit Union
2. United Appeal
3. Contract and Voluntary Life Insurance/Health Insurance/Dental Insurance/
Cancer Insurance/Intensive Care Insurance.
4. Board approved Tax Sheltered Annuities
5. Section 125 Plan.

G. Use of school office machines and materials with prior approval of the building principal.

H. The Union shall be permitted to speak with new employees for a period of no more than ten (10) minutes to discuss Union membership and benefits. The meeting can take place on paid time, in private, and in the new employee's first week of work, or at the next most reasonable opportunity.

ARTICLE 11 - BOARD (MANAGEMENT) RIGHTS

Section 1. As stipulated in Chapter 4117.08(c) of the Revised Code, the Board of Education shall maintain its right and responsibility to:

A. Determine matters of inherent managerial policy which include, but are not limited to, areas of discretion or policy such as the functions and programs of the public employer, standards of services, its overall budget, utilization of technology, and organizational structure;

B. Direct, supervise, evaluate, or hire employees;

C. Maintain and improve the efficiency and effectiveness of governmental operations;

D. Determine the overall methods, process means, or personnel by which governmental operations are to be conducted;

E. Suspend, discipline, demote, discharge for just cause, lay off, non-renew, transfer, assign, schedule, promote, or retain employees;

F. Determine the adequacy of the work force;

G. Determine the overall mission of the Board as a unit of government;

H. Effectively manage the work force;

- I. Take actions to carry out the mission of the Board as a governmental unit.

Section 2. The exercise of the rights and responsibilities of the Board as set forth herein, the adoption of policies, rules and regulations and practices and the use of judgment and discretion in connection with the implementation of these rights shall be limited only by specific and express terms of this contract. The parties hereby agree that the Board shall not be permitted to exercise any management rights which alter or modify an existing provision of this agreement.

The Board shall have the right to implement any management rights not specifically addressed in the collective bargaining agreement provided that the Board engages in good faith negotiations over the decision and effects of the implementation of the decision which concerns wages, hours, and other terms and conditions of employment. Negotiations shall commence and be completed within twenty (20) working days, or within the time frame mutually agreed to by the parties, after the Board's request to the Union to engage in good faith negotiations. Additionally, the negotiations teams shall consist of four (4) individuals and the OAPSE Field Representative and the Parties' consultant. In the event an agreement cannot be reached between the Board and the Union regarding the issue, the Board may implement its decision. However, the Union may, at its discretion, proceed to binding arbitration in accordance with Article 8 to appeal the Board's exercise of decision. In the event an arbitrator should find that the Board's implementation failed to follow the process set forth herein, is inconsistent with Article 11, Section 1, or is arbitrary, capricious, unreasonable, discriminating or retaliatory, the arbitrator may find for the Union and return the parties to the status quo that existed prior to the Board's implementation, with all other appropriate remedies.

ARTICLE 12 – PAY

The regular rate of pay for each position in the bargaining unit shall be in accordance with the rates established for each class as provided in the wage schedule, which is attached hereto, and by reference incorporated as a part of this Agreement. Upon initial employment, the Board shall determine which step of the appropriate salary schedule the new employee shall be placed on in its sole discretion.

ARTICLE 13 – SENIORITY

Seniority shall be defined as the uninterrupted length of continuous service with the Board in a particular job classification. Authorized leaves of absence do not constitute an interruption in continuous service. In the case of identical seniority, the first day of work shall be used in determining order of seniority. In the case of identical first day of work, date of application shall be used. It is recognized that an employee may acquire seniority in more than one job classification during his/her employment with the Board.

The Union will be provided a current seniority list upon request.

ARTICLE 14 - LAYOFF AND RECALL

When layoff becomes necessary in a job classification due to the abolishment of positions, lack of funds or lack of work, the following procedures shall govern such layoff:

A. The number of people affected by reduction in force will be kept to a minimum by not employing replacements insofar as practical for employees who resign, retire or otherwise vacate a position.

B. Whenever it becomes necessary to lay off employees for reasons as stated above, affected employees shall be laid off according to seniority within a job classification with the least senior employees in that job classification being laid off first.

C. The following classifications shall be used for the purpose of defining classification seniority in the event of layoff:

- | | |
|----------------|----------------------|
| 1. Bus Drivers | 4. Mechanics |
| 2. Cooks | 5. Paraprofessionals |
| 3. Custodians | 6. Maintenance |

D. The Board shall determine in which classifications the layoff shall occur and the number of employees to be laid off. In the classification of layoff, employees with the least seniority in that classification shall be laid off before any employee in that classification with greater classification seniority is laid off. An employee who is to be laid off and who has employment seniority with the Board in another classification shall be permitted to bump into the other classification in which he/she has seniority if there are employees in that other classification with less seniority in that classification than the employee exercising bumping rights. Qualifications for job positions shall not be changed when a reduction in force is implemented until the bumping procedure has been completed.

E. Fourteen (14) days prior to the effective date of layoff, a list shall be prepared by the Board setting forth the names, seniority dates and classifications of those individuals to be laid off and this notice shall be provided to the President of OAPSE Chapter #738. Each employee to be laid off shall be individually notified in writing of his/her anticipated layoff with each notice of layoff stating the following:

1. Reasons for the layoff or reduction.
2. The effective date of layoff.

F. Reinstatement shall be made from the recall list of laid off employees in reverse order before any new employees are hired in that classification.

G. Vacancies which occur in the classification of layoff shall be offered in writing to the employee standing highest on the recall list for that classification before the next person on the list may be considered. An employee who declines reinstatement and/or does not respond to the notice of recall within seven (7) days of its mailing shall be deemed to have declined the offered position and shall be permanently removed from the recall list.

H. The employee's name shall remain on the appropriate recall list for a period of twenty-four (24) months from the effective date of layoff. If reinstated from layoff during this period, the employee shall retain all previous accumulated seniority, but the affected employee shall not earn seniority while laid off.

ARTICLE 15 - BID PROCEDURE

When a vacancy occurs in a classification or a location assignment, it shall be emailed to each employee at his/her District email account and shall not be filled for a period of five (5) working days from the date of the email and shall be posted on the District website.

Each posting shall specify classification, location, and hours of the position, but this information will not need to be included in the auto-notify announcement. If multiple vacancies exist, the positions may be posted in one posting. The President of OAPSE 738 shall receive a copy of each posting. Any employee may request the vacant position in writing or via District email.

In selecting the replacement employee, the Board shall apply the following formula:

- A. The posted notice will describe the minimum qualifications required for the vacancy.
- B. Employees within the department or classification of the position shall be considered first for the vacant position.
- C. If more than one employee within the same department or classification requests the position in writing, the employee with the highest seniority shall be considered first for the position.
- D. The highest seniority shall be determined by the employee's last date of hire by the Board.
- E. If the position is not filled by an employee within the vacant position classification, other employees within the bargaining unit may apply for and be interviewed for the position if they are qualified. Qualifications for a position shall be determined by the Board.

- F. Seniority and qualifications will be considerations used in filling any job vacancy.
- G. If it is determined by the Board that a current bargaining unit member is not qualified for the position, the Board may fill the position with a newly hired employee.

Changes in job classifications: Those changing job classifications will be put on the salary schedule step in the following manner. Step 0 to 5 will match step for step. Step 6 to 9 will be put on step 6. Step 10 to 14 will be put on step 10. Step 15 to 19 will be put on step 15, and step 20 and above will be on step 20.

ARTICLE 16 – OVERTIME /Extra Time

A. All overtime must be approved by the employee's supervisor. All overtime work shall be assigned by the Superintendent or his/her designee. Overtime will be paid bi-monthly.

B. Assignment of Custodial Overtime-Cooks Extra time- In assigning overtime/Extra time the Superintendent or his/her designee shall make an effort to assign overtime/Extra time to custodians/cooks on a rotating seniority basis. All custodians/cooks wishing to be considered for overtime/Extra time work for extracurricular activities shall have their names placed on an overtime/Extra time rotating list at the beginning of the school year.

As overtime/Extra time opportunities occur, the Superintendent or his/her designee shall assign the extracurricular overtime/Extra time work to the custodian standing at the top of the list regardless of the building location in which the overtime opportunity may occur. If the Head Custodian is designated as the coordinator for the overtime, he/she shall be paid for all time spent doing so outside his/her regular work day. Once the employee is notified, the employee must let the Superintendent/designee know of his/her intent to work the overtime/extra time within four (4) hours of the notice. If an employee is skipped in the overtime rotation, they will be offered the next event with the same or comparable hours. Once a custodian at the top of the overtime list has been offered the opportunity for an overtime assignment, his name shall rotate to the bottom of the list. If the Board is unable to obtain a custodian in the preceding manner, the Superintendent or his/her designee may hire a substitute custodian, or if a substitute is unavailable, any custodian on the overtime list may be required to perform the work, in order of reverse seniority unless the employee is unable to do so due to extenuating circumstances.

C. Definition/Compensatory Time - For all hours actually worked over forty (40) in one work week, the employee shall be paid at the rate of time and one-half or shall receive compensatory time as determined by the Superintendent or his/her designee. An employee shall be permitted to use earned compensatory time within a reasonable period after making the request if the use does not unduly disrupt the operations of the Board, however, compensatory time may not be used during instructional time unless specifically approved by the Superintendent or his/her

designee. Compensatory time received in lieu of a cash payment shall be at the rate of one and one-half hours of compensatory time for each hour of overtime worked. An employee may not accrue more than two hundred forty (240) hours of compensatory time. Saturday, Sunday, and Holiday work shall be paid at the rate of time and one half, or the employee may be granted compensatory time as determined by the Superintendent or his/her designee provided that the Saturday and/or Sunday are not part of the employee's regularly scheduled work week.

D. Mutually Agreed Schedule Adjustment - If an employee works more than their regularly scheduled hours in any particular day, the Board and the employee can mutually agree to adjust the employee's schedule for that week to reduce the hours to be worked in any future date that week. The Board or the employee may request the schedule adjustment.

E. Hours Worked Defined - Work week shall be defined as 12:00 a.m. Sunday through 11:59 p.m. Saturday. Time for which an employee is compensated for sick leave personal leave, vacation, or professional leave, but does not actually work, shall not be computed as "hours worked" for purposes of determining eligibility for overtime. or compensatory time off.

ARTICLE 17 - PERSONAL LEAVE

Section I - Classified employees are entitled to receive a maximum of three (3) non-accumulative days per contractual year of paid personal leave.

Section 2 - The following rules, regulations and procedures shall govern the use of these days.

- A. Notification for personal leave shall be via KIOSK or equivalent at least three (3) days prior to such leave.
- B. Personal leave shall not be granted:
 - 1. On the first and last day of the student school year, nor on the work day immediately preceding or following a holiday nor the day before, during, or the day after a vacation period for students except in the case of a bona fide emergency or extenuating circumstances, as determined by the Superintendent or his/her designee.
 - 2. For employees to be gainfully employed by another person or entity on any day included on the employee's work calendar.
- C. An approved personal leave day which happens to fall on a calamity day will not be counted as a personal leave day. Personal leave may be taken in half (1/2) day or full day increments. Personal leave may be taken in one -third (1/3) day or full day increments if you are a driver with a mid-day route.
- D. The Board reserves the right to deny the use of personal leave if more than 10% of the employees in the classification in the building have requested personal leave or are on sick leave and additional absences for personal leave would unduly interrupt the operation of the building or the classification.
- E. Any personal leave which the employee does not use shall be converted to sick

leave at the end of the school year.

Section 3 - If an emergency arises, as determined, and approved by the Superintendent or his/her designee, the three (3) day notice may be waived.

ARTICLE 18 - ATTENDANCE INCENTIVE

The Board will provide the following attendance incentive for nine (9) month employees.

0 day missed -	\$500.00
1 day missed -	\$400.00
2 days missed -	\$200.00

The Board will provide the following attendance incentive for twelve (12) month employees.

0 day missed -	\$750.00
1 day missed -	\$600.00
2 days missed -	\$300.00

For purposes of the attendance incentive, a day missed for any reason except approved professional leave, or vacation shall be considered a day missed for purposes of determining eligibility for the attendance incentive. Perfect attendance will be determined based upon the contracted work year of the employee.

ARTICLE 19 - PROFESSIONAL MEETINGS

The release of personnel to serve as official delegates shall be limited to one (1) delegate and the Chapter President for the Annual OAPSE Conference. The number of days without loss of pay shall be limited to no more than a collective total of four (4) days per calendar year.

ARTICLE 20 - SICK LEAVE

Section 1 - Sick leave (day absent with pay) will be granted to classified employees for days absent due to personal illness, pregnancy related illness or injury, injury, exposure to contagious disease which could be communicated to others, and for absence due to illness, injury or death in the employee's immediate family. The sick leave request shall be entered into the approved electronic system at the time of the request.

Section 2 - For the purpose of sick leave use in the event of illness or injury to a member of the immediate family, immediate family is interpreted to include husband, wife, child, mother, father or other relative living in the employee's household.

Section 3 - In the event of death, up to five (5) sick leave days may be used if the death

involves a member of the immediate family. For the purposes of death in the immediate family, immediate family is defined to include father, mother, brother, sister, husband, wife, child, in-laws, grandparents or other relatives living in the member's household.

Section 4 - Each full-time classified employee shall be entitled to accumulate fifteen (15) days of sick leave for each year under contract which shall be earned at the rate of one and one-quarter (1 1/4) days per month. Classified employees who are less than full-time but work more than one hundred (120) days during the year shall be entitled to accumulate sick leave for the time actually worked. Sick leave accumulation shall not exceed a maximum of two hundred sixty-five (265) days per employee. Employees capped as of March 1, 1987, shall have 5 additional days added to their sick leave accumulation.

Section 5 - The Superintendent reserves the right to request a staff member to furnish a physician's statement confirming his/her reason for absence when claiming sick leave in the event there is some question as to whether or not sick leave benefits are justified.

ARTICLE 21 - SEVERANCE PAY

The Batavia Local School District Board of Education shall, at the time of retirement or death of an employee from the District, grant payment for one-fourth (1/4) of the number of days of such employee's unused accumulated sick leave not to exceed sixty- six and one-quarter (66.25) days.

The per diem rate at the time of retirement or death shall be used to determine the amount of such pay. Said pay to be made in a single payment at the time of retirement or in the case of death, to the employee's beneficiary(s); or in the calendar year immediately following the employee's last work day upon the employee presenting to the Treasurer a copy of his/her first retirement check.

Retirement as used herein means disability or service retirement under any state or municipal retirement system in the state, provided it takes place simultaneously with the employee's termination of employment with the Board.

ARTICLE 22 - MILEAGE COMPENSATION

Classified employees who drive their personal vehicles in the performance of official school business shall be compensated at the current IRS rate.

Mileage reimbursement will be paid only upon submission of the official school district mileage form signed by the appropriate supervisor and the superintendent. Forms must be submitted on a monthly basis.

ARTICLE 23 – BUS ROUTE BIDDING

Section 1 - Route Development: The Transportation Supervisor has the responsibility of developing, establishing the route time, maintaining, and adjusting all regular (AM/PM), mid-day, shuttles, unassigned routes, and other bus duties.

Each route will have a set starting and ending time, estimated driving time, and designated stops identified, and include a student list. Each route will have a minimum of ½ hour additional daily time (2 ½ hours per week) over and above the driving time inclusive of layover time for the purpose of compensating for time spent completing pre-trip and post trip inspections, bus sweeping, bus washing, bus window and mirror cleaning, completing required paperwork and occasional fueling. Failure to use the additional time for the intended purpose, or failure to maintain bus cleanliness may result in disciplinary action per Article 7. Buses shall be assigned by the Transportation Supervisor.

Section 2 - Route Bidding: Bus routes will be available for preview on-line and in a paper copy one week before the first day of August in-service day activities. Drivers will pick routes on the first day of in-service activities in August. Drivers will be notified by the end of the school year of the date of the route bidding for the subsequent school year. Drivers, on the basis of seniority, shall select regular, mid-day routes, shuttle routes, and other bus duties simultaneously until all routes have been selected. The cumulative time (regular, mid-day, and shuttles) on which a driver may bid (or accept) shall not exceed eight hours a day. Each driver will be allotted 15 minutes to choose their route. Route times (base pay) will be established on that day.

Section 3 – Route Re-bidding – Definition and Time-frame: Any circumstance that results in an increase of route time of at least fifteen (15) minutes will be cause for a route re-bidding (e.g., route review, new student(s), vacancy, new route, other). Route re-bidding shall occur only as of November 1 and prior to March 15th. After March 15th, the Transportation Supervisor shall fill routes with drivers not assigned to a specific route, substitutes, or new hires in this order.

Section 4 - Procedure for Route Re-Bidding

1. Route Review: a driver or the Transportation Supervisor may request of the other, in writing, that the time of the driver's route be reviewed. If the route review establishes that a differential of at least fifteen (15) minutes (either way) exists from the original route time established for the route, the time will be adjusted to reflect the new route driving time. A gain of at least fifteen (15) minutes shall be cause for a route re-bid. For route time reviews, GPS will be used to determine the route time by randomly selecting, by lot, four (4) of the previous ten (10) days GPS information. The dates shall be represented by numbers 1-10, with 1 being the most recent date. The Board representative and Association representative shall each select two (2) numbers each, rotating the selection with the Board representative selecting first. The GPS generated time must evidence a consistent deviation of at least fifteen (15) minutes from the

established route time to be subject to this provision. This information will be reviewed by the Transportation Supervisor and Association President/Designee. A route re-bid shall also occur if a driver is off on a Board approved leave of absence for more than thirty (30) work days and an interested driver will gain at least fifteen (15) minutes. Drivers who changed routes due to this shall return to their previous route upon the driver returning from their leave of absence.

2. Route Vacancies: Route vacancies occurring during the school year shall be cause for route re-bidding.

3. Re-bid Procedure. Routes eligible for re-bid (hereinafter referred to as "vacancy") shall be posted for five (5) days, within three (3) days of being known and filled on the basis of seniority. Once the vacancy is filled, a substitute shall be assigned to the vacated route for the remainder of the school year. In the event there are no eligible drivers to fill any of the vacancies and for vacancies occurring after March 15th, the Transportation Supervisor may fill those vacancies for the remainder of the school year with permanent subs, substitutes, or new hires.

Definition of a "Floater" – A Floater is driver who is not assigned a specific route.

ARTICLE 24 – EXTRA TRIPS (FIELD, EXTRA CURRICULAR, EMERGENCY, OVERNIGHT, OTHER)

Section 1 – Procedure At the beginning of each school year, Field Trip lists (see below) shall be created with drivers being placed on "rotating" lists on the basis of seniority. These Field Trip lists will include the following:

1. Evening and Weekend Field Trips
2. Mid-day Field Trips
3. Mid-day Routes and Shuttles
4. Emergency Trips
5. Extra Work* (master seniority list)

* Extra work shall be defined as other student transportation needs that are within the district boundaries, trips that can be dropped off, trips that are less than 2 hours in duration, work on days that Batavia Schools are not in session, and for non-driving tasks (e.g. delivery of buses, picking up parts, assisting the mechanic, bus washing). Drivers shall be selected on a rotating basis from the master seniority list and paid at their regular hourly rate. Summer work shall be rotated weekly. Summer school work will be bid by June 1, by seniority.

6. Summer Bus Washing. Drivers may be hired from the master seniority list to thoroughly clean buses inside and out in preparation for the state inspection and/or other duties as defined by the Transportation Supervisor. (paid the rate of Step 0 per hour).

Field trips, which are known, shall be posted no later than Wednesday of each week and selection of trips may begin immediately and will continue until all trips are selected. If a work-

week is shortened due to no school (e.g., Thanksgiving, Winter Break, Spring Break, other), the posting may be for more than one week's worth of trips and bidding for these Extra Trips will continue until all trips are selected. The Wednesday posting shall be for the following week, which begins at 12:01 a.m. on Sunday. Trips received after Wednesday's posting will be considered Emergency Trips. Drivers will be notified of Emergency Trips by posting or radio and will be filled by seniority rotation. A driver who accepts an Emergency Trip will not lose his/her rotation position on any of the other Lists.

A driver may not select a field trip that conflicts with his/her regular route assignment unless it is posted and authorized by the Transportation Supervisor. However, for the life of the contract, a driver will be permitted to bid on a field trip route and drive the pickup portion of the route so long as the driver can be at the pickup site prior to the departure time as noted on the trip ticket.

All posted field trips shall be selected no later than the end of the day on Friday. Once a driver has been notified that they are "next up" on any list, they will have no more than two (2) hours to pick or pass on the trips, failure to pick in the allotted time will result in a automatic pass. If no substitute drivers are available, then regular drivers not on the Field Trip List that are willing to take a trip may do so. If none are willing to do so, then the Extra trip shall be assigned to the driver on the Field Trip List in the reverse order of seniority with the least senior driver being assigned the trip and his/her name rotating to the bottom of the list for this purpose.

If an evening or weekend trip is cancelled after the driver reports for duty, the driver shall be compensated for two hours at the Field Trip Rate for "show up" time. During the time periods when the driver is on site at the extracurricular event but is not driving, the driver shall be compensated in accordance with Section 3.

Section 2 – Overnight Trips -When a driver takes an overnight trip, he/she shall be paid at the applicable hourly wage rate set forth in Section 3 for all time he/she actually spends driving, (e.g., pre-trip, time from bus garage to pick up of passengers and transporting to hotel/motel, time driving from motel to site of event, time spent driving from event to bus garage). On overnight trips, the Board will provide and pay for the driver's room and up to \$10 for breakfast, \$15 for lunch and \$25 for dinner, which includes gratuity and sales tax. Receipts are required for payment of this allowance.

Section 3 – Except as provided in Section 2, the driver shall be compensated at the drivers regular hourly rate of pay for all time on field trips, whether driving or waiting at the event. Pay will commence upon the completion of the drivers route should the route and the trip overlap.

Bus Driver Trainer

Bus driving training is the primary responsibility of the Transportation Supervisor; however, additional trainers may be hired (for an additional \$3.00 per hour) from a driver sign-up

sheet on an as needed basis. Applicants (BLSD drivers) shall be interviewed and considered by the Transportation Supervisor prior to selection. Seniority will be considered, but will not be the determining factor. The selection will not be the subject to a grievance.

Vans/or Other School Owned Transportation

Vans used for regular school transportation to and from school shall be driven by bus drivers. Vans used for field, athletic or athletic trips may be driven by coaches who are van-certified.

ARTICLE 25 - JOB DESCRIPTION

Members of the bargaining unit should be furnished with a copy of their Board approved job description at date of hire. Job descriptions for each position are available at the Board offices.

The Association President will be provided a copy of any proposed change in a job description at least ten (10) days prior to Board action on the proposed change.

ARTICLE 26 – VACATION

Section 1: Each full-time, non-teaching employee, including full-time, hourly-rated and per diem employees, after service of one (1) year with the Board of Education, shall be entitled, during each year thereafter while continuing in the employ of such Board of Education, to vacation leave with full pay for ten days, excluding legal holidays.

Section 2: Employees continuing in the employ of such Board for ten (10) or more years of service shall be entitled to vacation leave with full pay for fifteen days , excluding legal holidays.

Section 3 - Employees continuing in the employ of such Board for fifteen (15) or more years of service shall be entitled to vacation leave with full pay for twenty days, excluding legal holidays.

Section 4 - "Full-time employee" is a person who is in service not less than eleven (11) months in each calendar year.

Eleven and twelve month employees who were hired before July 1, 2019, will receive their vacation allotment on January 1 of each year.

Eleven and twelve month employees who were hired on or after July 1, 2019, will receive their vacation allotment on their anniversary date.

Section 5 - Upon separation from employment, a non-teaching employee shall be entitled to compensation at his/her current rate of pay for all lawfully accrued and unused vacation leave to his/her credit at the time of separation, not to exceed the vacation leave accrued to his/her credit

for the two (2) years immediately preceding his/her separation and the prorated portion of his/her earned but unused vacation leave for the current year. In case of the death of a non-teaching employee, such accrued and unused vacation leave, and prorated portion of the current year shall be paid in accordance with Section 2113.04, Ohio Revised Code, or to his/her estate.

Section 6: Each non-teaching employee must use his/her vacation time in the year that it is earned and at a time most convenient to the work schedule of the Board of Education as determined by the Superintendent or his designee.

ARTICLE 27 - HOLIDAYS

Section 1 - All regular classified employees employed on an eleven or twelve month basis are entitled to the following holidays for which they will be paid their regular wage provided each such employee accrued earnings on his/her next preceding and next following scheduled work days before and after such holiday or was properly excused from attendance at work on either or both of those days: New Year's Day, Martin Luther King Day, Presidents' Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Thanksgiving Day, the day after Thanksgiving, Christmas Eve, and Christmas Day. As it relates to Memorial Day or Labor Day for nine (9) month employees only, the requirement to accrue earnings both the day before and the day after the holiday only applies if the employee is scheduled to work on both of those days. In addition to the above holidays, employees are entitled to any day that the Board of Education may declare as a holiday. Veterans' Day will be a paid holiday if the Board declares it as a holiday.

Section 2 - All regular classified employees employed on a nine or ten month basis are entitled to the following holidays for which they will be paid their regular wage provided each such employee accrued earnings on his/her next preceding and next following scheduled work days before and after such holiday or was properly excused from attendance at work on either or both of those days: New Year's Day, Martin Luther King Day, Presidents' Day, Memorial Day, Labor Day, Thanksgiving Day, the day after Thanksgiving, Christmas Eve, and Christmas Day. In addition to the above holidays, employees are entitled to any day that the Board of Education may declare as a holiday.

Section 3 - Holidays, as defined in this article, which fall on Saturday or Sunday, shall be celebrated on the following Monday or the preceding Friday, as determined by the Board of Education. Holidays falling on all other days of the week shall be celebrated on the day the holiday falls.

Section 4 - A holiday falling during an employee's approved vacation week will extend the vacation period by one day.

ARTICLE 28 - LEAVE OF ABSENCE WITHOUT PAY

Upon written request of a classified employee, the Board of Education may grant a leave of absence without pay for a period of not more than two (2) consecutive school years for education or professional or other purposes, and shall grant said leave where illness or other disability is the reason for the request. Upon subsequent request, such leave may be renewed by the Board. The request shall state the reason for the required leave, the date the leave is to begin and the date the leave is to end.

An employee may be required by the Board to provide adequate medical documentation if the reason for the leave request is illness or other disability.

Persons returning from leaves of absence are subject to assignment by the Superintendent to a position within their classification.

The employee shall provide a written notice of intent to return on or before July 1, in the year the leave is taken, except in the case of medical leave. Should this written notification not be forwarded by this stated date, all obligations between the employee and Board shall be terminated as of July 2 of the year at issue.

If, after the return of the employee from leave, the person employed for the purpose of replacing an employee on leave is continued in employment as a regular employee, or if he/she is hired by the Board as a regular employee within a year after the employment as a replacement, he/she shall receive credit for the length of service with the Board during the replacement period as stipulated in Ohio Revised Code 3319.13.

An employee on illness or disability leave of absence without pay has the option of retaining full insurance coverage by paying monthly in advance to the Treasurer an amount equal to those premiums. The provisions of this Article are intended to supersede any conflicting provisions of Ohio Revised Code section 3319.13.

ARTICLE 29 – FAMILY MEDICAL LEAVE ACT (FMLA)

The Board of Education agrees that if an employee who is eligible to receive benefits through the Family Medical Leave Act requests to be placed on leave pursuant to said Act, the Board shall place the member on family medical leave for the period of time it is required to do so and pay the insurance benefits of an employee on FMLA to the extent required by law. In accordance with the provisions of the FMLA, the Board may require the use of paid leave contemporaneously with the use of FMLA leave. Eligibility shall be on a rolling calendar basis.

Upon returning from leave pursuant to this provision, the Board shall return the employee

to the same or similar position he/she had prior to going on leave.

ARTICLE 30 - ASSAULT LEAVE

Any classified employee who is absent from work due to a physical injury resulting from a physical assault on him/her which occurs in the course of that employee fulfilling his/her contractual duties will remain on full pay status for up to ten (10) days per assault without loss of sick leave. The following rules shall apply:

A. Any case of assault on a classified staff member shall be promptly reported to the building administrator, and the police will be notified.

B. A written report of all assaults on classified staff personnel shall be made to the office of the Superintendent and immediate investigations, hearings and actions shall commence according to the adopted suspension/expulsion regulations of the Board.

C. Any classified staff member who is physically assaulted may be excused by his/her supervisor, upon request, to seek a physician's or dentist's evaluation of his/her condition.

D. Physical disability on the day of the assault and the following school day shall require a statement signed by the employee to justify the use of assault leave. The same rules apply to this as ordinary sick leave with regard to fraudulent statements.

E. Absence beyond that provided in the immediately preceding paragraph shall require a certificate from a licensed physician or dentist stating the nature of the disability and that the employee is unable to work as a result of the disability before payment can be approved.

F. The classified employee shall not lose any pay as a result of his/her absence due to court appearance for the purpose of prosecuting the assailant.

ARTICLE 31 - MISCELLANEOUS

Section 1 - During the term of this Agreement, the Board shall not establish any rules, regulations, and/or policies which directly contravene any of the negotiated terms and conditions set forth herein unless required by a federal or state statute or law now existing or hereafter adopted or decided. If, during the term of this Agreement, there is a change in any state or federal law which would invalidate or contravene any provision of this Agreement, the parties will meet to negotiate any necessary change in the Agreement relative to the affected provision within thirty (30) calendar days upon request of either party. Should the parties fail to reach agreement during these negotiations, the Board may implement its last and final offer.

Section 2 - If any provision of this Agreement or any application of this Agreement is found to be contrary to law, then, only that provision or application shall be considered invalid to the extent it is contrary to law, but all other provisions hereof shall continue in full force and effect unless the essence of this has been destroyed by the finding that such provision or application is contrary to law. Any such provision or application which is found contrary to law and is thus invalidated shall be, upon written request, the subject of further negotiations between the Association and the Board and shall be subject to the terms of Article 5.

Section 3 - The Agreement expresses the entire and complete agreement between the Board and the Association and it constitutes the complete and exclusive agreement governing the relationship of the parties and supersedes all prior understandings, agreements and practices between the Board and the Association or the classified personnel covered by this Agreement, whether written or oral, express or implied and may not be modified except in writing, signed by the parties hereto and during the full term of the Agreement, neither the Board nor the Association may require the other party to negotiate on any subject covered or not covered by this Agreement.

Section 4 - Calamity - In the event that the Batavia Local School District is closed due to an epidemic, snow, or other public calamity as stated by Ohio Revised Code employees shall be paid for all hours contracted to work on that day. If an employee is required to work on a calamity day, then the employee shall receive compensatory time in an amount equal to the number of hours worked on the calamity day. The use of compensatory time shall be with the approval of the employee's supervisor. Should the Board make up the day for which the employee was already compensated, and the employee did not actually work on that calamity day, the employee shall not be entitled to any additional compensation so long as the number of total days worked do not exceed assigned number of work days.

ARTICLE 32 - PAY PERIODS

All bargaining unit members shall be paid on a biweekly pay basis. If the normal pay date falls on a holiday, the paycheck shall be issued on the preceding work day. Payroll errors will be corrected immediately, if possible, but no later than the next pay period if agreed upon by the parties involved. Each bargaining unit member shall be paid in twenty four (24) equal pays on the 15th and 30th of each month.

All bargaining unit members shall have their payroll check deposited by electronic transfer to a financial institution of his/her choice. The employee's salary shall be paid by electronic transfer to a financial institution not later than 10:00 a.m. each pay date. Remittance evidence of paycheck shall be emailed to each employee on the scheduled pay date.

ARTICLE 33 - WAGES AND FRINGE BENEFITS

1.h The Board of Education will provide a health insurance plan, available through Clermont County Health Consortium, with the Board paying Eighty Eight Percent (88%) of the premium and the employee paying Twelve Percent (12%) of the premium.

2.h The Board of Education will provide a dental plan and pay Eighty Eight Percent (88%) of the premium and the employee paying Twelve Percent (12%) of the premium.

3.h The Board of Education shall provide \$50,000 life insurance or equivalent and pay

100% of the premium.

4. The Board of Education shall provide all employees working twenty (20) or more hours per week and all other employees hired prior to 2/28/87 the benefits set forth in Article 30, subsections 1, 2 and 3. All employees hired after 2/28/87 and working less than twenty hours per week shall not be provided the insurance described in Article 31, subsections 1, 2, 3, and 4.

5. Effective July 1, 2022, a 3% per step wage increase. Effective July 1, 2023, a 2% per step wage increase. Effective July 1, 2024, a 2% per step wage increase. There shall be a stipend of \$750.00 for maintenance and mechanic employees annually and paid twice a year (every 6 months).

Step 22 \$.50 more than step 20

Step 25 \$.50 more than step 22

\$500.00 one-time bonus payable by 12/01/2022

6. The Board shall designate each employee's mandatory contribution to the SERS Retirement System as "Picked-Up" by the Board, although they shall continue to be designated as employee contributions.

The amount of the employee's income reported by the Board is subject to federal and state income tax, and shall be the employee's total gross income reduced by the percentage amount of the employee's mandatory retirement system contribution made by the Board.

No employee's total salary shall be increased by such "pick-up" nor shall the Board's total contribution to the retirement system be increased thereby. There shall be no increased cost to the Board except incidental administrative expenses necessary to implement this program.

In the event that a majority of the members of the employee's bargaining unit no longer desire this "pick-up" plan or if there is an adverse determination from any governmental unit (including the Internal Revenue Service), affecting the qualifying status of this plan, this "pick-up" provision shall be null and void.

Members of the bargaining unit acknowledge that the Board is in no way liable to them as a result of the implementation of this program at their request and that they shall assume any liability as the result of an adverse ruling by the Internal Revenue Service.

7. For the employee to receive the insurance benefit programs, they must complete the necessary applications and provide all information needed by the insurance companies and the Board of Education. The insurance will become effective for new employees on their first day of employment according to the starting date on their contract.

8. If a bargaining unit member is awarded a supplemental employment contract the effective hourly rate for the duties performed under the terms of the supplemental contract shall be the Federal minimum hourly wage rate. The Treasurer shall notify the employee in writing of the maximum number of authorized work hours for the position for the entire contract. No employee may work more than those stated hours. Under no circumstances shall an employee be paid less than the stated contract amount. An employee shall complete a time sheet for all hours worked under the supplemental contract.

9. Effective July 1, 2016, the opt out shall be removed and any employee who had previously opted out shall be paid a onetime payment of Five Hundred Dollars (\$500.00). Should the opt out be found to be legally permissible, it will be reinstated.

10. The Board shall offer a Section 125 Plan for the sole purpose of providing tax relief for employees' contributions toward insurance benefits.

11. Four Hundred Dollars (\$400.00) per person shall be provided to maintenance and mechanic personnel each year for the purposes of purchasing jeans, collared name/district badged shirts, pocketed t-shirts, boots, bibs and/or jackets. The Board will purchase ten (10) shirts annually for custodians and food service personnel.

ARTICLE 34 - EMPLOYMENT CONTRACTS

Upon employment by the Board into a regular bargaining unit position, beginning with any person employed after July 1, 2019, the employee shall be employed pursuant to the contract sequence set forth in Ohio Revised Code section 3319.081.

ARTICLE 35 - HIRING RETIRED EMPLOYEES

1. Beginning July 1, 2022, individuals who have retired and who are or will be receiving retirement benefits through any State retirement system may be employed by the Board. There shall not be any expectation that any such individual, whether formerly an employee of the Board or not, will be offered employment. The Board reserves the right to offer or not to offer such employment selectively, based on the needs of the school district, and no reason for declining to offer such employment to anyone pursuant to this provision shall be required.

2. The salary to be paid to the retired employee shall be determined by the Board at the time of initial employment and at the time of each subsequent contract grant.

3. Individuals employed pursuant to this shall receive any health, dental, and vision benefits, and shall not receive any life insurance or severance benefits.

4. Individuals employed pursuant to this provision shall receive one (1) year limited contracts and shall not be eligible for continuing contracts, regardless of their years of service. The

decision whether to employ an individual hired under this section for another year is solely within the discretion of the Board of Education, and that decision is not subject to the grievance procedure or Ohio Revised Code section 3319.081 or the Ohio Revised Code section 3319.083. If the board determines that it will employ the bargaining unit member for the succeeding school year, the board will attempt to notify the retired employee by April 30th. Retired employees shall be subject to removal in accordance with Article 32 and shall have the same status as Probationary Employees set forth therein.

5. Each one (1) year contract shall automatically expire upon the completion of the school year, and it shall not be necessary for the district to take formal action to non-renew the employee pursuant to Ohio Revised Code section 3319.083 in order to terminate the employment relationship. The employment relationship shall end upon the expiration of the contract in the same manner as a supplemental contract. Individuals employed pursuant to this provision may not apply for vacancies, shall not maintain bumping rights, shall have no seniority rights over any other employee, and are not subject to, or required to participate, in any evaluation process provided by this Agreement. Individuals hired pursuant to this provision are not entitled to any severance benefits or retirement incentive benefits.

6. Individuals employed pursuant to this provision shall start each contractual year with a zero (0) sick leave balance but shall earn sick leave during the contractual year at the same rate as other members of the bargaining unit. If the individual is employed under another contract(s) for succeeding years, there will not be a carryover of the sick leave days from year to year.

7. All of the terms and conditions of employment set forth in the preceding numbered paragraphs shall supersede and replace any sections of the Ohio Revised Code with which they are in conflict, including but not limited to, Sections 3319.081; 3319.082; 3319.083; 3317.12; Chapter 3309; 3313.202; and, 3319.141.

ARTICLE 36 - ATTENDANCE OF EMPLOYEES' CHILDREN AT BATAVIA LOCAL SCHOOL DISTRICT

If the Board rescinds its open enrollment policy, employees residing outside of the Batavia Local School District shall be permitted to enroll their children, tuition free, in the Batavia Local School District subject to the following conditions:

A. A parent files an application with the Superintendent by June 1 of each school year requesting that his/her child be enrolled in the Batavia Schools for the following school year.

B. The student the employee wishes to enroll has not been suspended or expelled from a public or private school located in or outside the State of Ohio.

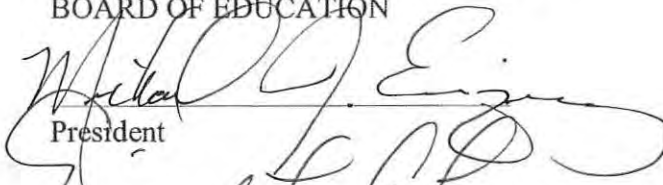
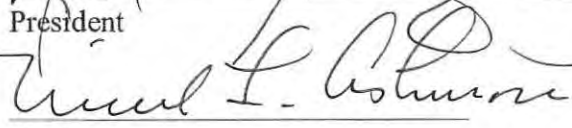
C. The Superintendent determines that classroom space is available for the student in

the grade level and/or courses he/she will be taking the next school year.

If all the above conditions are met, the student shall be enrolled in the Batavia School District for one school year tuition free.

IN WITNESS WHEREOF, the Board and the Association have executed this Agreement by their duly authorized representatives at Batavia, Ohio this the 30 day of JUNE, 2022.

BATAVIA LOCAL SCHOOL DISTRICT
BOARD OF EDUCATION


President

Treasurer

OHIO ASSOCIATION OF PUBLIC
SCHOOL EMPLOYEES
CHAPTER #738


President

Field Rep.

• •

On th

- ar re

10.1111/j.1365-3113.2011.04591.x

10

Batavia Local School District								
Salary Schedule								
Ohio Association of Public School Employees								
2022-2023 School Year (Assumptions = 3% Increase / Step 22 - .50 higher than step 20 / Step 25 - .50 higher than step 22)								
Effective Dates: See cover sheet								
Step	Cook	Head Cook	Custodian	Head Custodian	Paraprofessional	Maintenance	Bus Driver	Mechanic
0	13.56	16.75	16.98	18.44	13.88	21.01	17.82	19.46
1	13.86	17.04	17.15	18.62	14.17	21.33	18.25	19.77
2	14.16	17.35	17.35	18.81	14.48	21.47	18.64	19.92
3	14.44	17.63	17.47	18.94	14.76	21.66	19.04	20.10
4	14.79	17.97	17.65	19.12	15.10	21.80	19.45	20.24
5	15.05	18.24	17.83	19.29	15.37	21.98	19.88	20.41
6	15.35	18.53	17.97	19.43	15.68	22.13	20.27	20.57
7	15.66	18.85	18.17	19.64	15.98	22.31	20.68	20.76
8	15.98	19.17	18.33	19.79	16.30	22.45	21.12	20.89
9	16.26	19.45	18.49	19.96	16.58	22.62	21.55	21.04
10	16.58	19.77	18.67	20.13	16.90	22.77	21.97	21.22
12	16.87	20.06	18.96	20.43	17.19	23.10	22.30	21.53
13	17.01	20.19	19.13	20.60	17.34	23.25	22.42	21.65
15	17.16	20.34	19.29	20.76	17.47	23.39	22.54	21.77
17	17.47	20.66	19.63	21.09	17.79	23.73	22.66	21.90
20	17.78	20.96	19.94	21.41	18.10	24.03	22.78	22.01
22	18.28	21.46	20.44	21.91	18.60	24.53	23.28	22.51
25	18.78	21.96	20.94	22.41	19.10	25.03	23.78	23.01
Contract days	189	193	260	260	188	260	189	260
						\$750 Annual Stipend		\$750 Annual Stipend

Batavia Local School District								
Salary Schedule								
Ohio Association of Public School Employees								
2023-2024 School Year (Assumptions = 2% increase)								
Effective Dates: See cover sheet								
Step	Cook	Head Cook	Custodian	Head Custodian	Paraprofessional	Maintenance	Bus Driver	Mechanic
0	13.83	17.08	17.32	18.81	14.16	21.43	18.17	19.85
1	14.13	17.38	17.50	18.99	14.46	21.76	18.61	20.16
2	14.45	17.69	17.69	19.19	14.77	21.90	19.02	20.32
3	14.73	17.98	17.82	19.32	15.06	22.10	19.42	20.50
4	15.08	18.33	18.00	19.50	15.41	22.24	19.84	20.64
5	15.35	18.60	18.19	19.68	15.68	22.42	20.28	20.82
6	15.65	18.90	18.33	19.82	15.98	22.58	20.68	20.98
7	15.98	19.23	18.54	20.03	16.30	22.76	21.10	21.17
8	16.30	19.55	18.69	20.19	16.63	22.90	21.54	21.30
9	16.59	19.84	18.88	20.36	16.91	23.07	21.98	21.46
10	16.91	20.16	19.04	20.54	17.24	23.23	22.41	21.64
12	17.21	20.46	19.34	20.84	17.54	23.56	22.75	21.96
13	17.35	20.60	19.51	21.01	17.69	23.71	22.87	22.08
15	17.50	20.75	19.68	21.17	17.82	23.86	22.99	22.20
17	17.82	21.07	20.02	21.51	18.15	24.20	23.11	22.33
20	18.13	21.38	20.34	21.84	18.46	24.51	23.23	22.45
22	18.64	21.89	20.65	22.35	18.97	25.02	23.74	22.96
25	19.15	22.40	21.36	22.86	19.48	25.53	24.25	23.47
Contract days	189	193	260	260	188	260	189	260
						\$750 Annual Stipend		\$750 Annual Stipend

Batavia Local School District								
Salary Schedule								
Ohio Association of Public School Employees								
2024-2025 School Year (Assumptions = 2% Increase)								
Effective Dates: See cover sheet								
Step	Cook	Head Cook	Custodian	Head Custodian	Paraprofessional	Maintenance	Bus Driver	Mechanic
0	14.11	17.42	17.66	19.19	14.44	21.86	18.54	20.25
1	14.42	17.73	17.85	19.37	14.75	22.19	18.89	20.56
2	14.73	18.05	18.05	19.57	15.07	22.34	19.40	20.72
3	15.03	18.34	18.18	19.70	15.36	22.54	19.81	20.91
4	15.38	18.70	18.36	19.89	15.71	22.68	20.23	21.05
5	15.66	18.97	18.55	20.07	15.99	22.87	20.68	21.24
6	15.97	19.23	18.70	20.22	16.30	23.03	21.09	21.40
7	16.30	19.61	18.91	20.43	16.63	23.21	21.52	21.60
8	16.63	19.94	19.07	20.59	16.96	23.36	21.97	21.73
9	16.92	20.23	19.24	20.76	17.25	23.53	22.42	21.89
10	17.25	20.56	19.42	20.95	17.58	23.69	22.66	22.07
12	17.56	20.87	19.73	21.25	17.89	24.04	23.20	22.40
13	17.70	21.01	19.90	21.43	18.04	24.19	23.33	22.52
15	17.85	21.16	20.07	21.60	18.18	24.34	23.45	22.65
17	18.18	21.49	20.42	21.94	18.51	24.68	23.58	22.78
20	18.50	21.81	20.75	22.27	18.83	25.00	23.70	22.90
22	19.02	22.33	21.27	22.79	19.35	25.52	24.22	23.42
25	19.54	22.85	21.79	23.31	19.87	26.04	24.74	23.94
Contract days	189	193	260	260	188	260	189	260
						\$750 Annual Stipend		\$750 Annual Stipend